



Form 29 – Notice of non-party disclosure

Industrial Relations Act 2016, section 989

Industrial Relations (Tribunals) Rules 2011, rules 64A, 64B, 64C, 64D, 64E, 64F, 64G, 64H and 64I

Information

- Use this form to obtain documents from non-parties.
- Please read this form carefully. Please complete all relevant sections. Information that is missing or non-compliant with the relevant section of an Act or the Rules may result in the rejection of your form.
- Once this form has been processed the Industrial Registry will contact you so that you can collect the authorised forms and serve them on the relevant person.

For further information please contact the Industrial Registry on 1300 592 987 or via email at qirc.registry@qirc.qld.gov.au

If there is an affected party and Rule 64D applies, the lawyer must complete certificate in Form 31 if the affected party is not to be served.

Applicant/Appellant:

Cory Lea Shepherd

Appellant (Self-Represented)

v

Respondent:

Workers' Compensation Regulator

c/- Appeals Unit, Office of Industrial Relations

PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties List** and file it with this form.

ISSUED WITH THE AUTHORITY OF THE ☐ INDUSTRIAL COURT OF QUEENSLAND ☒ QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Filed in the Industrial Registry on (Date):

22 / 04 / 2026

Upon the request of

Name of requesting party:

Cory Lea Shepherd (Appellant - Self-Represented)

Address:

15 Edmond Street, Coomera QLD 4209

Signature of Industrial Registrar:

Senior
Registry Officer

 OFFICIAL SEAL

Date:

22/04/2026

To:	
Name of nominated party:	The Chief Executive
	State of Queensland - Metro South Hospital and Health Service
Address:	c/- Ms Chris Thorburn, Executive Director, Clinical Governance, Risk & Legal, Metro South Hospital an
And to:	
Name of affected party:	Workers' Compensation Regulator
Address:	c/- Appeals Unit, Office of Industrial Relations

NOTE: If there is more than 1 affected party - please complete schedule 1

Between 7 and 14 days after the day of service of this notice on you, you must (for the purpose of the Court or Commission determining this proceeding) produce the document(s) mentioned or described in the schedule to the requesting party, in accordance with this notice.

The matter in issue in the proceedings about which the document(s) sought is/are directly relevant is as follows:

3000 character limit. (Note: if more than 3000 characters are required please attach a Schedule)

The Appellant appeals the Regulator's rejection of his workers' compensation claim for a psychiatric injury (MDD with Anxious Distress, DSM-5 296.23) sustained in the course of employment as AO3 in the Logan Hospital Switchboard, Metro South HHS. Date of onset: 18 June 2024. Matter proceeds de novo before Commissioner Dwyer. The Respondent's s 32(5)(a) WCRA defence requires proof that the injury arose out of reasonable management action taken in a reasonable way.

Documents are sought in 5 evidentiary categories cross-referenced to the Amended Statement of Facts and Contentions dated 7 April 2026 (Form 9A): Category A (SPOK / complaints / SOP), Category B (FRMS compliance), Category C (management presence + email), Category D (statutory leave + payroll), Category E (Communication Book + union delegate + PID). Production tests the reasonableness of the admitted 7-hour rest-break interval (Form 24, Para 1) against the QH FRMS mandate (QH-POL-171; QH-GDL-401-3.3).

FULL SCHEDULE OF DOCUMENTS - see CONTINUATION SCHEDULE annexed to this Notice (20 Items, Categories A-E, with directly-relevant pleading anchors).



Schedule of documents

The following documents must be produced

[illegible]

A. Obligations of nominated party

1. The nominated party is required to produce to the requesting party the documents mentioned or described in the schedule of documents above.
2. The nominated party is required to produce the documents between 7 and 14 days after being served with this notice.
3. The nominated party is required to produce the documents-
 - (a) at the nominated party's or a lawyer's/agent's place of business during normal business hours; or
 - (b) as may be agreed between the nominated party and the requesting party.
4. The requesting party may take copies of the documents produced pursuant to this notice.
5. A failure by the nominated party to comply with the Commission-imposed obligations may result in the requesting party obtaining compliance orders and such orders as the Commission may consider appropriate.

The nominated party is entitled to the reasonable expenses of producing documents. The nominated party must give notice of its reasonable expenses within one month of compliance with this notice and the requesting party can pay those expenses or cause the expenses claimed to be assessed.

B. Nominated party's rights

1. The nominated party is only obliged to produce documents if-
 - (a) the documents relate to a matter in question between the parties to the proceeding;
 - (b) the document is in the possession or control of the nominated party;
 - (c) the document is capable of being required to be produced at trial;
 - (d) there is no other reasonably simple, inexpensive way for the requesting party to prove what the documents show.
2. The nominated party is only obliged to produce documents if the requesting party has served a copy of this notice on-
 - (a) a person, other than a party to this proceeding named in the title, about whom information is sought; and
 - (b) the owner of the document if it is other than the nominated party. (If the owner of the document cannot be found after reasonable inquiry compliance with this sub-rule is excused.)
3. The nominated party may object to production provided that such objection is given within 7 days of service of this notice or such other time as the Commission may allow.
4. The nominated party's objection must –
 - (a) be written;
 - (b) served on the requesting party; and
 - (c) clearly state the reasons for objection.Grounds for objection are contained in Rule 64E of the *Industrial Relations (Tribunals) Rules 2011*.
5. Service of an objection is a stay of this notice and the objections may be challenged under Rule 64G of the *Industrial Relations (Tribunals) Rules 2011* by the requesting party.

C. Affected party's rights

1. The affected party (if any) may object to production provided that such objection is given within 7 days of service of this notice or such other time as the Commission may allow.
2. The affected party's objection must-
 - (a) be written;
 - (b) be served on the requesting party or their lawyer/agent; and
 - (c) clearly state the reasons for objection.Grounds for objection are contained in Rule 64E *Industrial Relations (Tribunals) Rules 2011*.
3. Service of an objection is a stay of this notice and the objections may be challenged under Rule 64G *Industrial Relations (Tribunals) Rules 2011* by the requesting party.
4. This notice must be served on all affected parties before service on the nominated party.



Filed by:			
Name:	Cory Lea Shepherd		
Description of signatory:	Appellant (Self-Represented)		
Postal address:	15 Edmond Street		
	Suburb/Town	Coomera	Postcode 4209
Phone number:	0417 400 227	Fax number:	
Mobile number:	As above		
Email address:	coryshepherd1@hotmail.com		
Signature:			
Date:	22 / 04 / 2026		



Schedule 1 – Affected parties

And To:	
Name of 2nd affected party:	Line Manager, Logan Hospital Switchboard (position holder during stressor period)
Address:	c/- Executive Director, Clinical Governance, Risk & Legal, Metro South HHS
And to:	
Name of 3rd affected party:	Director with responsibility for the Logan Hospital Switchboard function (position holder during stressor period, as referenced at Form 9A, Part B, para 2 Stressor 1(c) and (f))
Address:	As above, c/- Executive Director, Clinical Governance, Risk & Legal, Metro South HHS

And To:	
Name of 4th affected party:	
Address:	
And to:	
Name of 5th affected party:	
Address:	

And To:	
Name of 6th affected party:	
Address:	
And to:	
Name of 7th affected party:	
Address:	



CONTINUATION SCHEDULE — annexed to Form 29 – Notice of Non-Party Disclosure

Matter: WC/2024/227 | Filed 22 April 2026

This Continuation Schedule physically extends the official QIRC form to which it is annexed and forms part of it. The official form's Schedule of Documents row 1 directs the reader to this annex, which sets out the full schedule of documents sought, in five evidentiary categories, with directly-relevant pleading anchors to the Amended Statement of Facts and Contentions dated 7 April 2026 (Form 9A).

MATTER IN ISSUE

The Appellant appeals the Regulator's rejection of his claim for a psychiatric injury (Major Depressive Disorder with Anxious Distress, DSM-5 296.23) sustained in the course of his employment as an Administration Officer (AO3, Level 4) in the Logan Hospital Switchboard, Metro South Hospital and Health Service, with date of onset 18 June 2024. The matter proceeds *de novo* before Commissioner Dwyer. The Respondent's statutory defence under s 32(5)(a) of the *Workers' Compensation and Rehabilitation Act 2003* (Qld) carries the onus of proving, on the balance of probabilities, that the injury arose out of, or in the course of, reasonable management action taken in a reasonable way.

The pleaded role is the coordination of life-safety emergency clinical codes — Code Blue and MET calls — through the SPOK clinical paging system: Amended Statement of Facts and Contentions dated 7 April 2026 (Form 9A), Part B, paragraph 1.1. The mechanism of injury, in summary, is the requirement that the Appellant manage those life-safety codes while operating under extreme employer-induced exhaustion arising from a roster pattern that flagrantly bypassed the Queensland Health Fatigue Risk Management System (QH-POL-171; QH-GDL-401-3.3) — a strict, non-delegable clinical safety framework implemented in the wake of the 2006 Queensland Ombudsman *Neville Report*.

The fatigue arithmetic is admitted on the face of the Respondent's Form 24 and is mathematically decisive. On the consecutive shifts of 17 to 18 March 2024, the Appellant was rostered on shifts of 15:00–23:00 and 06:00–14:00, separated by a 7-hour rest-break interval (Admitted Fact: Form 24, Para 1) — itself 3 hours short of the Award/FRMS 10-hour mandate (Admitted Fact: Form 24, Para 3). Within that 7-hour window the Appellant's established 4-hour to and return commute between his residence and Logan Hospital had to be accommodated, leaving an objective sleep opportunity of approximately 4 hours. The composite is **16 hours of wakefulness/work, 4 hours of high-risk commuting, and approximately 4 hours of actual sleep**. The Appellant was thereafter required to coordinate Code Blue and MET activations on the second shift in that objectively impaired state. The Regulator's own Independent Review Office has already formally found the 7-hour rest-break interval to be unreasonable management action (Admitted Fact: Form 24, Para 37).

The documents sought fall into five evidentiary categories, each cross-referenced to a specific paragraph of the operative pleading so as to demonstrate direct relevance on the face of this Notice for the purposes of Rule 64B:

Category	Subject	Relevance anchor
Category A	Switchboard operational activity, complaints and SOP records (SPOK exports, Exchange filter, document control system)	Form 9A, Part B, paras 1.1, 2 Stressor 1(a), 2 Stressor 3(a)–(b).
Category B	FRMS compliance records (system records, training/LMS data, register entries)	Form 9A, Part B, para 2 Stressor 1(c) and 3(a)–(d); Form 24, Paras 1, 3 and 37.
Category C	Management presence and targeted email exports (Active Directory, swipe-card, Exchange filter)	Form 9A, Part B, para 2 Stressor 1(a), (b), (d) and (f); Form 24, Paras 14, 17–19 and 21.
Category D	Statutory leave administration and payroll (MyHR audit trail, policy records, payroll export)	Form 9A, Part B, para 2 Stressor 1(d), 2(a)–(b), 3(c); Form 24, Paras 40–41.
Category E	Communication Book, union delegate and PID operational records	Form 9A, Part B, para 2 Stressor 1(b), (e), (f), (g); Form 24, Paras 14, 17–21.



FULL SCHEDULE OF DOCUMENTS

ADMINISTRATIVE, FORMAT AND PRIVACY CONCESSIONS

Production by native electronic export only. Each Item below is a defined class of record capable of production by native electronic export from an identified Queensland Health or Metro South HHS system (SPOK, FRMS register, Learning Management System, Active Directory / Entra ID / Citrix audit, Queensland Health Security Access swipe-card system, Exchange / Outlook, MyHR, Queensland Health Payroll, Metro South HHS document control system). No manual document review, no free-form keyword search across the Queensland Health journaling estate, and no discovery-style inspection is required. Production is to be made in PDF, Excel, CSV or the native system export format. Paper production is acceptable only for the single physical record at Item 18 (Communication Book).

Production window: 14 days from date of service.

Production window for Director's statement in lieu. Where the nominated party advises, under any Item below, that no record of the kind sought exists within the Metro South HHS record-keeping systems, production may be effected by a written statement signed by the Chief Executive of Metro South HHS or a delegated Director of Metro South HHS, certifying that no such record exists. That written statement will be accepted by the Appellant in lieu of the record itself for the purposes of this Notice.

Privacy redaction consent. The requesting party expressly consents to redaction of the names and dates of birth of third-party employees from rosters, access logs and MyHR logs. Position title and classification are to be retained. Clinician and patient identifiers may be redacted from SPOK records; event timestamps, code types and shift codes are to be retained.

Legal professional privilege carve-out. Communications attracting legal professional privilege or client legal privilege — including communications to or from Crown Law, the Executive Director, Clinical Governance, Risk & Legal, or external solicitors retained by Metro South HHS, for the dominant purpose of giving or obtaining legal advice or for use in litigation — are expressly excluded from the scope of Item 10 and every other Item in this Notice.

PID secrecy carve-out. Excludes Ethical Standards Unit investigator working notes attracting PID secrecy under the *Public Interest Disclosure Act 2010* (Qld), s 65.

Personal contact details. Private or personal email addresses, residential addresses, and direct-dial telephone numbers of any current or former Metro South HHS employee are not required. References to individual managers are by position title only for the purposes of scoping the targeted system queries required below.

Reasonable expenses. The requesting party undertakes to meet the nominated party's reasonable expenses of production assessed in accordance with Rule 64I.

Service via representative address (Rule 64C(2)). Where any affected party identified at Schedule 1 is served via the representative service address (Executive Director, Clinical Governance, Risk & Legal, Metro South HHS) rather than directly, the requesting party retains a contemporaneous file note of the attempt at service for the purposes of Rule 64C(2). The representative address is the appropriate channel having regard to the Appellant's obligation under Appeal Guide Part 6.2.1 not to seek personal contact details of current or former Metro South HHS employees.

Identification of affected parties by position title. The 2nd and 3rd affected parties at Schedule 1 are identified by position title only — Line Manager, Logan Hospital Switchboard, and Director with responsibility for the Logan Hospital Switchboard function. This identification is adopted for three concurrent reasons: (i) the Appellant is restrained by Appeal Guide Part 6.2.1 from seeking personal contact details of current or former Metro South HHS employees, and position-title identification is the least intrusive form of identification consistent with that restraint; (ii) the operational conduct pleaded at Form 9A, Part B, paragraph 2 Stessor 1 engages a validated Public Interest Disclosure (PID 24-ESU-1130) such that heightened confidentiality around the identified individuals is appropriate as a matter of statutory context; and (iii) the representative service address under Rule 64C(2) is in any event the appropriate service channel, which renders personal naming unnecessary for the purposes of effective service. Metro South HHS, as the nominated party, holds the employment records necessary to identify the position-holders during the stressor period without further particularisation from the Appellant.



CATEGORY A — SWITCHBOARD OPERATIONAL ACTIVITY AND RELATED COMPLAINT / SOP RECORDS

Category A goes to the operational reality of the role and is directly relevant to Form 9A, Part B, paragraph 1.1, paragraph 2 Stressor 1(a) and paragraph 2 Stressor 3(a) (b). The pleading characterises the role as the coordination of life-safety emergency clinical codes (Code Blue, MET calls) through the SPOK system and pleads, at Stressor 1(a), that the Line Manager's unilateral directives 'bottlenecked' emergency workflows and directly caused verifiable delays to the communication of urgent pathology results to clinical staff. Category A produces, by native electronic export and without manual review: (i) the objective volume and count of emergency codes coordinated by the Appellant during the causative period and, in particular, across the admitted 7-hour rest-break shift pairing of 17–18 March 2024 (Items 1 and 2, from the SPOK clinical paging system); and (ii) the documentary record of complaints received by management concerning Logan Switchboard operational errors — specifically, doctors paged or directed to incorrect locations — together with any consequential changes to the Switchboard operating procedures (Item 3, from the Exchange / Outlook server-side filter and the Metro South HHS document control system). No clinical record review is required at any stage.

No.	Date range	Description
1	17–18 Mar 2024	SPOK emergency paging export — 17–18 March 2024. Native electronic extraction from the SPOK clinical paging system of all Code Blue and MET call activations, and doctor-on-call paging events, coordinated by the Appellant during: (i) Shift 1, 15:00–23:00 on 17 March 2024; and (ii) Shift 2, 06:00–14:00 on 18 March 2024 — being the two consecutive shifts separated by the admitted 7-hour rest-break interval (Admitted Fact: Form 24, Para 1; as pleaded at Form 9A, Part B, para 2 Stressor 3(a)–(b)). Production to include event timestamp, code type and response-acknowledgement timestamp. Clinician and patient identifiers may be redacted; activation count and code type are the relevant measures.
2	1 Dec 2023 – 30 Jun 2024	Aggregate SPOK activation counts — Logan Switchboard. Monthly aggregate counts, by code type (Code Blue, MET) and doctor-on-call paging events, for Logan Hospital Switchboard during the pleaded stressor period (Form 9A, Part B, para 2). Production by system export in Excel or CSV format. Clinician and patient identifiers are not required; the relevant measure is activation count per month per code type.



No.	Date range	Description
3	1 Jan 2023 – 30 Jun 2024	Complaints to management regarding Logan Switchboard operational errors (doctors paged to, or directed to, incorrect locations), and consequential changes to operating procedures. Native electronic export from the Queensland Health Exchange / Outlook system and the Metro South HHS document control system (QDMS or equivalent local repository) of: (a) Complaints received — server-side Exchange filter. All messages received by the Line Manager or the Director from any clinical or management correspondent (including medical registrars, visiting medical officers, consultants, nurse unit managers, or other Metro South HHS managers) where the subject line or first 200 words of the body contain a report or complaint that a doctor, registrar or other clinician was paged to, or directed to, an incorrect ward, unit, location, area or patient, or that a paging, routing or contact-list error occurred, identified by: <i>Location-error phrases</i> — 'wrong ward', 'incorrect ward', 'wrong location', 'incorrect location', 'wrong area', 'wrong bay', 'wrong bed', 'wrong room', 'wrong floor', 'wrong unit', 'wrong building', 'wrong campus', 'wrong department', 'wrong theatre', 'wrong ED', 'wrong patient'; <i>Directive-error phrases</i> — 'sent to the wrong', 'directed to the wrong', 'paged to the wrong', 'switchboard sent me to', 'switchboard paged me to', 'switchboard directed me to', 'I was sent to', 'I was told to go to', 'I was called to', 'shouldn't have been paged', 'should not have been paged', 'shouldn't have been called', 'shouldn't have come to', 'sent me to the wrong', 'paged me to the wrong'; <i>Clinician-role error phrases</i> — 'wrong doctor', 'wrong registrar', 'wrong consultant', 'wrong team', 'wrong clinician', 'wrong specialty', 'wrong person', 'not my patient', 'not on call', 'not on-call', 'not the right', 'got the wrong', 'called me instead of', 'paged me instead of', 'I'm not the'; <i>Operational and directory-error phrases</i> — 'paging error', 'pager error', 'switchboard error', 'misdirected', 'misrouted', 'incorrectly paged', 'wrongly paged', 'paged incorrectly', 'pager list', 'paging list', 'on-call list', 'contact list', 'directory', 'update the list', 'update the directory', 'update the pager', 'list is wrong', 'list is out of date', 'outdated', 'location lookup', 'location is wrong', 'location needs updating'; or materially equivalent formulations of the foregoing. (b) Management discussion of complaints. Meeting minutes, agenda items, file notes, action registers or briefing notes of Logan Hospital Switchboard team meetings, Clinical Governance Committee meetings, or other Metro South HHS operational meetings during the date range in which complaints of the kind at (a) were discussed or escalated. (c) Consequential changes to operating procedures. All versions of, and any variation, review, update or revision to, any Logan Hospital Switchboard standard operating procedure, work instruction, local protocol, paging protocol, call-routing protocol or location-lookup reference during the date range, including document control metadata showing the date of each version, the authorising officer and any recorded reason for change. Relevance. The Item directly engages the pleaded allegation at Form 9A, Part B, paragraph 2 Stressor 1(a) that the Line Manager's unilateral directives 'bottlenecked emergency workflows and directly caused verifiable delays to the communication of urgent pathology results to clinical staff. Complaints of doctors being paged or directed to incorrect locations are the operational manifestation of the pleaded workflow dereliction; consequential SOP changes, or the absence of such changes in the face of those complaints, directly test whether management action was taken in a reasonable manner. Pre-emption of oppressiveness (Rule 64E). The filter is bounded objectively at the Exchange server level by identified custodians (Line Manager and Director only), an identified date range, and identified phrase-families that are themselves the operational vocabulary of the pleaded dereliction. The phrase lists are therefore not a free-text trawl; they are a structured proxy for the conduct pleaded at Stressor 1(a). The application of the filter is server-side and requires no inbox review of any kind. Nil-result discharge. Where the server-side filter at (a) returns no results, an Exchange system log confirming the nil return is accepted in lieu. Where no SOP or work-instruction change occurred during the date range, a written statement from the Chief Executive or a delegated Director of Metro South HHS to that effect is accepted in lieu.



CATEGORY B — FRMS COMPLIANCE RECORDS (SYSTEM EXPORTS AND LMS DATA)

Category B addresses the central FRMS engagement issue. It is directly relevant to Form 9A, Part B, paragraph 2 Stressor 1(c) and paragraph 2 Stressor 3(a)–(d), and to the admitted facts at Form 24 Paragraphs 1, 3 and 37. The fatigue arithmetic is uncontested: **16 hours of wakefulness/work across the consecutive shifts, 4 hours of high-risk commuting consumed within the rest-break window, and approximately 4 hours of actual sleep opportunity.** The Award/FRMS mandate is a 10-hour rest break; the Appellant received 7 hours, a 3-hour shortfall. The FRMS is not a discretionary policy: it is a strict, non-delegable clinical safety framework implemented in the wake of the 2006 Queensland Ombudsman *Neville Report*, and the Independent Review Office has already accepted that the rest-break interval was unreasonable management action (Admitted Fact: Form 24, Para 37). Each item below is produced by native electronic export from the Metro South HHS FRMS register, the Queensland Health Learning Management System, or the delegations / governance record-keeping system. The records sought are directed exclusively at testing whether the FRMS framework was actually engaged, or whether — as the Appellant contends — the framework was bypassed entirely. **Where no record of the kind sought exists**, a written statement from the Chief Executive or a delegated Director of Metro South HHS certifying the non-existence of the record is accepted in lieu.

Component	Duration	Pleaded at Form 9A, Part B, para 2 Stressor 3(a)
Wakefulness / work	16 hours	Consecutive shifts 15:00–23:00 (17 Mar 2024) and 06:00–14:00 (18 Mar 2024), separated by a 7-hour break (Form 24, Para 1)
High-risk commute	4 hours	Established commute between residence and Logan Hospital, factored into the fatigue calculation
Actual sleep	~4 hours	Sleep opportunity remaining within the 7-hour rest-break interval after commute
Rest-break shortfall	3 hours	7-hour rest break was 3 hours short of the Award/FRMS 10-hour mandate (Admitted Fact: Form 24, Para 3; pleaded at Form 9A, Part B, para 2 Stressor 3(b))

No.	Date range	Description
4	17–18 Mar 2024	FRMS risk assessment record — 17–18 March 2024 shift pairing. Any Fatigue Risk Management System risk assessment conducted under QH-POL-171 or QII-GDL-401-3.3 in relation to the Appellant's consecutive rostered shifts of 15:00–23:00 (17 March 2024) and 06:00–14:00 (18 March 2024), produced by native export from the Logan Hospital FRMS register. Production to include (i) the trigger report or screening that initiated the assessment, (ii) any documented consideration of the 10-hour rest-break mandate (Form 9A, Part B, para 2 Stressor 3(b); Form 24, Para 3), (iii) the FRMS risk score or classification assigned to the shift pairing, and (iv) any escalation record. If no such assessment was conducted , a written statement from the custodian of the Logan Hospital FRMS register or a delegated Director to that effect is sought in lieu.
5	1 Jul 2022 – 30 Jun 2024	FRMS training and competency records — Line Manager and Director. Native export from the Queensland Health Learning Management System (or equivalent training record system) of all FRMS training records, e-learning completion certificates and induction records held in respect of the Appellant's Line Manager (Logan Hospital Switchboard) and the Director with responsibility for the Switchboard function, evidencing whether those persons had received FRMS training or held FRMS competency at any time prior to the 17–18 March 2024 roster. Relevance. FRMS competency is a precondition to the operational rostering authority conferred by QH-POL-171; in the absence of FRMS training the 7-hour rest-break interval cannot have been the product of reasonable management action, because the relevant manager would have lacked the very competency framework against which the fatigue risk is required to be assessed. The 1 July 2022 start date is the FRMS training-cycle anchor and is not temporally remote from the 17–18 March 2024 roster: it is the immediately preceding training cycle. If no such record exists for either person , a written statement from the Chief Executive or a delegated Director of Metro South HHS to that effect is sought in lieu and is itself probative of the competency-deficit pleaded at Form 9A, Part B, paragraph 2 Stressor 3(c).



No.	Date range	Description
6	1 Jul 2022 – 30 Jun 2024	FRMS delegation and governance record. Any instrument of delegation, role description, organisational chart entry or written governance record demonstrating which officer at Logan Hospital held the operational FRMS responsibility for Logan Hospital Switchboard rostering during the stressor period, produced from the Metro South HHS delegations manual or governance record system. If no such delegation or governance record exists, a written statement from the Chief Executive or a delegated Director of Metro South HHS to that effect is sought in lieu.
7	1 Jul 2022 – 30 Jun 2024	FRMS register entries and Switchboard roster exceptions. Native electronic export of Logan Hospital FRMS register entries, roster-exception reports, FRMS flags and fatigue incident logs generated by the rostering system in respect of Logan Hospital Switchboard during the stressor period. Employee names and dates of birth may be redacted; role classification and shift pattern retained.

CATEGORY C — MANAGEMENT PRESENCE AND TARGETED EMAIL EXPORTS

Category C goes to management presence and the documentary footprint of the directives complained of. It is directly relevant to Form 9A, Part B, paragraph 2 Stressor 1(a), (b), (d) and (f), and to the admitted facts at Form 24 Paragraphs 14, 17–19 and 21. Each Item is produced by native electronic export from the Queensland Health identity management environment, the Queensland Health Security Access swipe-card system, or the Exchange / Outlook server-side filter. The Exchange filter is bounded by identified custodian, identified recipient and identified date range; the result set is therefore objectively constrained at the system level. No inbox review of any kind is required.

No.	Date range	Description
8	1 Dec 2023 – 30 Jun 2024	Management system login records — Active Directory / Entra ID / Citrix. Native electronic export of Windows Active Directory, Entra ID and Citrix session-login audit records for the Line Manager's Queensland Health user account, recording for each working day in the stressor period: (i) the first login timestamp, (ii) the last logout or session-close timestamp, (iii) the total active session time, (iv) the workstation or device identifier associated with each session, and (v) the network segment or physical location associated with the workstation where such data is recorded by Queensland Health identity and endpoint management systems. Relevance: directly engages the pleaded characterisation of 'erratic physical presence' at Form 9A, Part B, para 2 Stressor 1(a). The user-account login record is the authoritative objective measure of working presence, independently retained in the Queensland Health identity management environment.
9	1 Dec 2023 – 30 Jun 2024	Management building-access swipe records. Native electronic export from the Queensland Health Security Access system of all swipe-card entry and exit events for the Line Manager at (i) the Logan Hospital main building perimeter and (ii) the Logan Hospital Switchboard departmental area, by date, time, reader identifier and direction of movement. Relevance: corroborative of Item 8 above, and captures on-site presence not reflected in login data (for example, meetings in other areas of Logan Hospital without workstation login).



No.	Date range	Description
10	1 Jan 2023 – 30 Jun 2024	Targeted email extraction — server-side Exchange filter, identified custodians and recipients. Native electronic export from the Queensland Health Exchange / Outlook system, by server-side filter applied against the defined custodians and recipients below. No manual review of any inbox is required. (a) Manager-to-Switchboard correspondence — full corpus. All messages where Sender Line Manager's Queensland Health mail account and Recipient – Logan Hospital Switchboard group distribution list alias, within the date range. Relevance: directly engages the pleaded 'unassessed unilateral directives ... without consultation' at Form 9A, Part B, para 2 Stressor 1(a). Manager-to-group-distribution-list email is by its nature operational directive correspondence; the recipient-alias filter itself bounds the evidentiary set. (b) 'Effective immediately' sub-set. Within the corpus at (a), identification of all messages where subject line or body contains 'effective immediately' or the materially equivalent phrases 'with immediate effect', 'effective now', 'take effect immediately', 'as of today' or 'effective from today'. Relevance: this is the particular species of unilateral directive pleaded at Stressor 1(a); the phrase itself evidences the absence of consultation because consultation by its nature requires prior engagement. (c) Operational directive sub-set. This sub-set is directed at <i>outbound</i> directive traffic from the Line Manager to the Switchboard and is complementary to (not duplicative of) the <i>inbound</i> complaint corpus captured at Item 3. Within the corpus at (a), identification of all messages where subject line or first 200 words of the body contain 'pathology' together with 'delay', or the terms 'additional checks', 'additional pages', 'directing calls', 'routing calls', 'doctor paging', 'paging protocol', 'call routing', 'wrong location', 'incorrect location', 'wrong ward', 'incorrect ward', 'wrong bay', 'wrong bed', 'wrong unit', 'wrong theatre', 'wrong ED', 'wrong department', 'wrong doctor', 'wrong registrar', 'wrong consultant', 'wrong team', 'paging error', 'pager error', 'switchboard error', 'misdirected', 'misrouted', 'pager list', 'paging list', 'on-call list', 'contact list', 'directory', 'update the list', 'update the directory', 'update the pager', 'location lookup', 'location accuracy' or 'correct location'. Relevance: engages the pleaded clinical-governance dereliction at Stressor 1(a) and aligns with the complaints corpus captured at Item 3. (d) Manager-to-Director correspondence concerning Appellant. Messages where both custodians are the Line Manager and the Director and the subject line or first 200 words of the body refer to the Appellant by surname, or to 'switchboard roster', 'switchboard fatigue', 'switchboard rest break' or 'switchboard consultation'. Relevance: engages the pleaded same-day dismissal of the 7 August 2023 grievance at Stressor 1(c) (Form 24, Para 5) and the 48-hour retraction direction at Stressor 1(f) (Form 24, Para 21). (e) Payroll-to-Manager correspondence — AVAC window. Messages where Sender is any Queensland Health Payroll account, Recipient is the Line Manager, date range 1 May 2024 – 31 May 2024, and subject line refers to the Appellant by surname or to PRN 15397775 or PRN 15605601. The 1–31 May 2024 window is targeted at the operational Payroll correspondence contemporaneous with the admitted 25-day AVAC delay (Form 24, Paras 40–41); earlier Payroll-related correspondence, to the extent captured, is picked up under the broader manager-to-group and manager-to-Director filters at sub-sets (a) and (d) above. Relevance: engages the admitted 25-day AVAC delay at Stressor 2(b) (Form 24, Paras 40–41). Pre-emption of oppressiveness (Rule 64E). Each sub-set above is bounded at the Exchange server level by identified sender, identified recipient and identified date range; the phrase-families at sub-set (b) and (c) are the operational vocabulary of the directives pleaded at Stressor 1(a) and the complaints corpus at Item 3, not a free-text trawl. No inbox review is required at any point. Nil-result discharge. Where the server-side filter returns no results for any sub-category, an Exchange system log or written certification from the custodian confirming that the filter was run and returned no results is accepted in lieu of production of messages for that sub-category.

CATEGORY D — STATUTORY LEAVE, MYHR AND PAYROLL (SYSTEM EXPORTS)



Category D goes to the disparate administration of statutory leave and the admitted 25-day delay in processing AVAC payroll corrections. It is directly relevant to Form 9A, Part B, paragraph 2 Stressor 1(d), Stressor 2(a) and (b), and Stressor 3(c), and to the admitted facts at Form 24 Paragraphs 40 to 41. Each Item below is produced by native electronic export from the MyHR system, the Queensland Health payroll system, or the Queensland Health / Metro South HHS policy and standard-operating-procedure library. No manual review is required.

No.	Date range	Description
11	20 Feb 2024 - 7 Mar 2024	Appellant's MyHR audit trail — COVID Special Pandemic Leave (Process Reference 15480560). Complete MyHR server audit trail for the Appellant's COVID Special Pandemic Leave application (Position: AO Switchboard 32002276; Organisational Unit: MSH CI LOGH Switchboard Srva 72010875), comprising the 'History' tab and 'Show Log' records with timestamps to the second. The export is to evidence each system event in turn: (a) the 20 February 2024 upload of supporting evidence (IMG_3668.jpg, 496 KB, 11:41:29 AM, by user account 'Cory Shepherd' — Respondent Exhibit D3, page 15); (b) the first decline at 12:26 PM on 21 February 2024, with reason code and free-text decline comment; (c) the second decline on 22 February 2024, with reason code and free-text decline comment; (d) the third decline ('Declined' per Respondent Exhibit D3, page 17), with reason code and free-text decline comment; (e) the final approval event — user account, evidence file referenced, upload timestamp; and (f) all other system events recorded against Process Reference 15480560.
12	1 Jan 2024 — 30 Jun 2024	Comparator MyHR audit trails — AO3 Logan Switchboard COVID Special Pandemic Leave. Anonymised native electronic export of MyHR audit trails for all COVID Special Pandemic Leave applications lodged by AO3 Logan Hospital Switchboard employees (other than the Appellant) during January – June 2024, with employee names, employee numbers and dates of birth redacted. Production to distinguish between: Mode A (Line Manager processed the leave through MyHR without employee upload -- audit trail records Line Manager's user account as the processor); and Mode B (employee required to self-upload -- audit trail records the employee's own user account as the initiating uploader, any subsequent decline events, and the final disposition).
13	20 Feb 2024 — 1 Mar 2024	Line Manager authority framework — COVID Special Pandemic Leave processing. Any Queensland Health, Metro South HHS or Logan Hospital policy, standard operating procedure, work instruction, local protocol, delegations manual, IIR circular, ServiceNow knowledge article or COVID-19 workforce directive in force between 20 February 2024 and 1 March 2024 that established or described the authority of a Line Manager to process, approve or upload COVID-19 Special Pandemic Leave on behalf of an employee under Mode A. The relevance is direct: the Respondent's Exhibit D3 records the Line Manager's written acknowledgement of Mode A authority at 1:28 PM on 20 February 2024 — 'Please send to me so I can submit for you in MyHR' -- yet the Mode A facilitation was withheld from the Appellant in circumstances where it was routinely extended to other AO3 staff. Production of the underlying policy framework will test whether that disparate treatment is reconcilable with the authority the Line Manager herself acknowledged.
14	1 Jan 2024 — 30 Jun 2024	Text message and electronic communication corpus — Appellant and Line Manager concerning COVID Special Pandemic Leave. All SMS, messages and other electronic chat communications between the Appellant and the Line Manager concerning MyHR Process Reference 15480560, exported Queensland Health-managed records-retention repository or managers phone (including any Queensland Health-issued mobile device records-management repository where such exists). The exchanges sought include, at minimum, the messages at Respondent Exhibit D3, pages 10–12 and 15–17.
15	19 Mar 2024	Leave ledger — 19 March 2024. Native electronic export of the Appellant's leave ledger for 19 March 2024 showing the deduction of personal/sick leave following the admitted 7-hour rest-break interval (Form 24, Para 1), and any HR correspondence refusing to process statutory fatigue leave. If no such IIR correspondence exists, a written statement from a delegated Director of Metro South HHS to that effect is sought in lieu.
16	Feb–May 2024	AVAC payroll export — Appellant (PRN 15397775 and PRN 15605601). Native electronic export from the Queensland Health payroll system of the Appellant's payroll ledgers and completed AVAC forms for the four AVAC-affected fortnights, including submission data showing the exact date and time the Line Manager digitally submitted the forms (relevant to the admitted 25-day delay at Form 24, Paras 40–41).



No.	Date range	Description
17	Feb – May 2024	Comparator payroll export — AO3 Logan Switchboard. Anonymised native electronic export of published rosters and payroll shift-penalty ledgers for AO3 Logan Hospital Switchboard employees across the four AVAC-affected fortnights, with employee names and employee numbers redacted.

CATEGORY E — COMMUNICATION BOOK, UNION DELEGATE AND PID RECORDS

Category E goes to the destruction of WHS records, the 13-month suppression of the Appellant's union delegate appointment, and the operational reaction to the validated Public Interest Disclosure (PID 24-ESU-1130). It is directly relevant to Form 9A, Part B, paragraph 2 Stressor 1(b), Stressor 1(e), Stressor 1(f) and Stressor 1(g), and to the admitted facts at Form 24 Paragraphs 14, 17–18, 20 and 21. Items 19 and 20 are produced by server-side Exchange filter on identified custodians and date windows. Item 18 is the specifically-identified Communication Book and a single meeting minute, neither of which requires any manual review. Item 20 is confined to operational HR reaction records only; Ethical Standards Unit investigator working notes attracting PID secrecy under the *Public Interest Disclosure Act 2010* (Qld), s 65, are expressly excluded.

No.	Date range	Description
18	Mar – Sep 2023 and 15 Nov 2023	Communication Book and 15 November 2023 Business Case minutes. (i) Colour scan of the Logan Hospital Switchboard Communication Book for the period March – September 2023 showing any torn, removed or altered pages, including the 6 June 2023 entry admitted at Form 24, Para 14; and (ii) the 15 November 2023 Logan Hospital Switchboard Business Case meeting minutes. Relevance: directly engages the pleaded destruction of WHS records at Form 9A, Part B, para 2 Stressor 1(b) (Form 24, Para 14).
19	1 Mar 2024 – 30 Jun 2024	Union delegate correspondence — server-side Exchange filter. Native electronic export from the Queensland Health Exchange / Outlook system of: (a) all messages sent by or received by the Line Manager or the Director referring, in the subject line or first 200 words of the body, to the Appellant's intent to become a Together Queensland union delegate (following the Appellant's text message of 5 March 2024 at 5:03 PM — Admitted Fact: Form 24, Para 18); (b) all messages received by any Metro South HHS mailbox (including the Line Manager, the Director, the 'Logan Hospital health team' mailbox, and any general Logan Hospital HR or People and Culture inbox) from Ms Heather Hayes (Together Queensland) or any other Together Queensland officer concerning the Appellant's appointment as union delegate, request for union-paid delegate training, request for Industrial Relations Leave, or any workplace delegate vote for Logan Hospital Switchboard; (c) all internal Metro South HHS messages forwarding, discussing or responding to the correspondence at (a) and (b). Relevance: directly engages the pleaded 13-month union delegate suppression at Stressor 1(g) and the admitted QH-POL-248 positive duty at Form 24, Paras 17–18. Nil-result discharge: where any sub-filter returns no results, an Exchange system log confirming the nil return is accepted in lieu.
20	13 May 2024 – 31 May 2024	Operational HR reaction to PID 24-ESU-1130 — server-side Exchange filter. Native electronic export from the Queensland Health Exchange / Outlook system of operational HR emails internal to Metro South HHS reacting to the Ethical Standards Unit's determination that the Appellant's 13 May 2024 complaint constituted a Public Interest Disclosure (Reference: 24-ESU-1130; Admitted Fact: Form 24, Para 20). Excludes Ethical Standards Unit investigator working notes attracting PID secrecy under the <i>Public Interest Disclosure Act 2010</i> (Qld), s 65. Relevance: directly engages the pleaded validated PID at Stressor 1(e) and the 48-hour retraction direction reprisal at Stressor 1(f) (Form 24, Para 21).

